

		The court finds Plaintiff's proposed SAC promotes resolution of the full dispute between the parties, complies with the relevant compulsory joinder statutes, and clarifies the remaining claims and defendants. No later than five (5) court days from the hearing, Plaintiff Li shall file and serve the Proposed SAC, which is attached as Exhibit A to the Deng Declaration. Clerk is ordered to give notice.
5	Provenzano vs. Oremor Automotive Group, LLC	The Court GRANTS Plaintiff ONM Environmental, Inc.'s motions to compel verified responses from Defendants Lithia Motors, Inc. dba Orange Coast Chrysler Dodge Jeep Ram Fiat's and FCA US LLC dba Stellantis North America to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One). The Court GRANTS Plaintiff ONM Environmental, Inc.'s motion to deem Requests for Admission (Set One) admitted by Defendants Lithia Motors, Inc. dba Orange Coast Chrysler Dodge Jeep Ram Fiat's and FCA US LLC dba Stellantis North America. A party may move for an order compelling responses to discovery at any time "[i]f a party to whom [discovery requests] are directed fails to serve a timely response." (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) For a motion to compel initial discovery responses, all a propounding party must show is that it properly served its discovery requests, that the time to respond has expired, and that the party to whom the requests were directed failed to provide a timely response. (<i>See Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 905-906.) Code of Civil Procedure section 2033.280(b) provides that where a party to whom requests for admission are directed fails to serve a timely response, the propounding party "may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010)." By failing to serve timely responses, the responding party waives any objection to the written discovery. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).) Here, the evidence establishes that Defendants failed to respond to the duly served discovery and therefore waived all objections. (<i>See Chavos Decl.</i> ¶¶ 3-8, Exs. 1-2.) There is no indication that Defendants served substantially compliant responses to the Requests for Admission before the hearing.